

CV-24-009764 CISNEROS, FRANK vs RIVETS AMERICAN GRILL INC – Plaintiff's Motion for Preliminary Approval of Class Action Settlement – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court finds the proposed settlement is within the range or reasonableness and deemed to be presumptively valid, subject to any objections that may be heard at the final fairness hearing and final approval by this Court, and subject to clarification of the following issues by the parties: The Court notes the designation of "Without Permission" as the cy pres recipient of unclaimed settlement funds herein; however, the motion fails to provide sufficient information for the Court to conclude that its designation complies with the provisions of Code Civ. Proc. § 384, which specifies that the unclaimed residual should be distributed "to nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent." Counsel shall ensure that the proper information is presented to the Court in this regard at the time of the final approval motion. The Court notes that the parties' agreement calls for funding of the settlement in 2 separate installment payments, with the provision that the administrator will disburse settlement funds after each payment. This requirement seems to be at odds with the information provided in the Class Notice, which advises class members that their respective portions of the settlement will be disbursed in "a single check." This language may be misleading in the event that a class member receives multiple settlement disbursements in connection with the defense's installment payments. Counsel shall meet and confer to resolve this issue and shall be prepared to demonstrate the same to the Court at the time of the final approval motion. Good cause appearing to the satisfaction of the Court, the class is certified for settlement purposes only in accordance with Cal. Rules of Ct., rule 3.769(c). The class counsel, class representative, and claims administrator are hereby preliminarily approved and appointed as set forth in the motion. The Court sets the following deadlines relative to this matter: 8-10-26 Defendant shall provide Class List and Data Report to Administrator 8-24-26 Administrator shall mail Class Notice to Class Members. 10-23-26 Deadline for submission of Opt-Out Notice, Objections, or dispute their share of the settlement proceeds 5-14-27 Deadline for counsel to file motion for order of final approval A final fairness hearing in this matter shall be set for June 8, 2027 at 8:30 a.m. in Department 23 of this court. The Class Notice and proposed order shall be revised to reflect the information reflected herein, including the date of the final fairness hearing and the corresponding deadlines.

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Good cause appearing to the satisfaction of the Court, the class is certified for settlement purposes only in accordance with Cal. Rules of Ct., rule 3.769(c). The class counsel, class representative, and claims administrator are hereby preliminarily approved and appointed as set forth in the motion.

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